

23BBCV01209 23BBCV01209

County: los-angeles

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Case Number: 23BBCV01209 Hearing Date: September 11, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Order for Publication of Summons

Hearing Date: 9/11/26

CASE NO.: 23BBCV01209

CASE NAME: Unite Welding Enterprises, Inc. v. E Roane

Construction Management, Inc., et al.

Moving Party: Plaintiff Unite Welding Enterprises, Inc.

Responding Party: Unopposed

Notice: Sufficient

Ruling:

GRANT

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of

Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the

Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT

SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY

BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of contract action. On

May 17, 2024, plaintiff Unite Welding Enterprises, Inc. (Plaintiff) filed a

Second Amended Complaint (SAC) alleging breach of contract and common counts

against individual defendants Agassi Halajyan and Michael Keheian (Defendants)

as well as E Roane Construction Management, Inc., Edward Dean Roane, Dillon

Construction, Inc., Christopher David Dillon, Dillon Roane, a Joint Venture,

Inc., and Canplan Industries, LLC.

On July 20, 2026, Plaintiff filed the

instant motion for authorization to serve defendants Agassi Halajyan and

Michael Keheia (collectively Defendants) by publication. No opposition has been

filed as of September 8, 2026.

LEGAL

STANDARD

Code of Civil Procedure Section 415.50(a) states that a summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: (1) a cause of action exists against the party upon whom service is to be made, or he or she is a necessary or proper party to the action; or (2) the party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property. (Code Civ. Proc., § 415.50(a).)

“An application for an order of publication must be accompanied by an affidavit stating facts from which the trial court can draw the conclusion that the plaintiff has a cause of action against the defendant.” (Rios v. Singh (2021) 65 Cal.App.5th 871, 884.) “This is a jurisdictional prerequisite to the issuance of an order of publication.” (Id.)

To obtain service by publication, the supporting affidavit must meet two requirements. First, a competent affiant with personal knowledge must declare probative facts that the party used reasonable diligence to serve the defendant in a statutorily authorized manner. (Olvera v. Olvera (1991)

232 Cal.App.3d 32, 42.) "The term 'reasonable diligence' ... denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney." (Watts v. Crawford (1995) 10

Cal.4th 743, 749 n.5; see also Rios, supra, 65 Cal.App.5th at

880.) ("The question is whether the plaintiff took the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances.") Second, the affiant must declare that Defendant is a necessary party to the cause of action or has an interest in real property subject to the jurisdiction of the Court. (See Olvera, supra,

232 Cal.App.3d at 42 n.9.)

If the Court finds that service by publication is authorized, "[t]he court shall order the summons to be published in a named newspaper, published in this state, that is most likely to give actual notice to the party to be served." (Code Civ. Proc., § 415.50(b).)

DISCUSSION

Plaintiff moves

the court for an order authorizing service of summons by publication to Defendants. (Mot., p. 2.)

Plaintiffs state

that they have met with Defendant Michael Keheia and the cousin of Defendant

Agassi Halajyan and that Defendants are aware of the claims against them.

(Mot., p. 4.) Plaintiff argues that at this meeting, Defendant Michael and the cousin of Defendant Agassi alluded to it not being economically worth defending the action. (Ibid.) Plaintiff argues that after an unsuccessful petition for entry of default, they attempted to serve Defendants on May 2, 6, and 9, 2025 at the addresses of their respective businesses. (Mot., pp. 5-6.) Further, Plaintiffs argue they have attempted to serve Defendants on June 15, 17, 20, and 24, 2025, at residential addresses associated with Defendants according to "SmartLinx Person Report". (Mot., pp. 6-7.) Plaintiff states that after a previous motion for publication of summons was denied, they hired a private investigator to attempt to locate Defendants. (Mot., p. 7.) Plaintiff argues subsequent attempts to serve Defendants at additional residential addresses identified via skip trace on March 5, 9, and 12, 2026 were unsuccessful. (Ibid.)

Moreover, Plaintiff argues that a cause of action exists against Defendants because their entities received the benefit of construction on their respective properties without providing payment to Plaintiff who performed the construction. (Mot., p. 8.)

Here,

Plaintiff has been diligent and made reasonable efforts in trying to locate and serve Defendants in a statutorily authorized manner. The

claims against Defendants arise out of non-payment for construction

services rendered by Plaintiff. (SAC, ¶¶ 19-36.) Plaintiff made a total of ten

renewed service attempts at several addresses associated with Defendants, evidenced by

several non-service reports. (Arvizu Decl., ¶¶ 10, 12, 14, 16, Exh.

10-11, 13-16.) Following those unsuccessful attempts, Plaintiff hired a private

investigator to conduct a skip trace, which revealed different Los Angeles

address' for Defendants which also resulted in unsuccessful service

attempts. (Arvizu Decl., ¶ 17.)

Further,

Defendants are necessary to this action as all causes of action are asserted

against both Defendants and their associated entities. (See SAC.)

Defendants are

necessary parties to this action, and Plaintiff has engaged in diligent efforts

to serve them. The Court finds that the Los Angeles Times is a

newspaper most likely to give actual notice to the party to be served.

CONCLUSION

AND ORDER

Plaintiff Unite

Welding Enterprises, Inc.'s motion for order for publication of summons is GRANTED.

MOVING PARTY

shall

provide notice and provide a proposed order consistent with this ruling within

10 days from this date.